

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #15	CCRB Case #: 201905641	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 06/26/2019 3:45 AM	Location of Incident: § 87(2)(b)	Precinct: 75	18 Mo. SOL 12/26/2020	EO SOL 8/12/2021	
Date/Time CV Reported Thu, 06/27/2019 12:20 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/27/2019 12:20 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christopher D'Alto	05804	945641	075 PCT
2. POM Robert Connors	20640	946730	075 PCT
3. POM Danny Cama	08924	939964	075 PCT
4. POM Andrew Hartmann	18195	940239	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Zachary Chardavoyne	11355	951605	075 PCT
2. POM Antonio Ortiz	06625	959016	075 PCT
3. SGT Kevin Tresham	02252	935868	075 PCT
4. POF Tameika Williams	02024	961452	075 PCT
5. POM Justin Micozzi	19650	966716	075 PCT
6. POM Robert Delaney	16514	957525	075 PCT
7. POM Jonathan Ortega	01852	961043	075 PCT
8. SGT Richard Polanco	03609	947361	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Christopher D'Alto	Abuse: Police Officer Christopher D'Alto forcibly removed § 87(2)(b) to the hospital	
B.POM Robert Connors	Abuse: Police Officer Robert Connors forcibly removed § 87(2)(b) to the hospital	
C.POM Christopher D'Alto	Force: Police Officer Christopher D'Alto used a Taser on § 87(2)(b)	
D.POM Christopher D'Alto	Abuse: Police Officer Christopher D'Alto searched the vehicle in which § 87(2)(b) was an occupant.	

Officer(s)	Allegation	Investigator Recommendation
E.POM Robert Connors	Abuse: Police Officer Robert Connors entered § 87(2)(b) § 87(2)(b), in Brooklyn.	
F.POM Danny Cama	Abuse: Police Officer Danny Cama entered § 87(2)(b) § 87(2)(b), in Brooklyn.	
G.POM Andrew Hartmann	Abuse: Police Officer Andrew Hartmann entered § 87(2)(b) § 87(2)(b), in Brooklyn.	
H.POM Danny Cama	Abuse: Police Officer Danny Cama searched § 87(2)(b) § 87(2)(b), in Brooklyn.	

Case Summary

On June 27, 2019, § 87(2)(b) filed this complaint with the CCRB via telephone.

At approximately 3:40 a.m. on June 26, 2019, § 87(2)(b) began acting in a disruptive manner in front of his home at § 87(2)(b) in Brooklyn. Several of his neighbors called 911 to report him as an emotionally disturbed person (EDP). Police Officer Christopher D'Alto and Police Officer Robert Connors of the 75th Precinct responded to the location and attempted to bring § 87(2)(b) into custody (**Allegations A and B: Abuse of Authority – Forcible removal to hospital, § 87(2)(g)**). Police Officer D'Alto used his Taser on § 87(2)(b) (**Allegation C: Force – Nonlethal restraining device, § 87(2)(g)**). The two officers then placed § 87(2)(b) in handcuffs. § 87(2)(b)'s car was parked nearby. After he was handcuffed, Police Officer D'Alto searched its interior (**Allegation D: Abuse of Authority – Vehicle search, § 87(2)(g)**). Several additional officers responded to the location, including Police Officer Danny Cama and Police Officer Andrew Hartmann of the 75th Precinct. Police Officer Connors, Police Officer Cama and Police Officer Hartmann entered § 87(2)(b)'s apartment (**Allegations E, F and G: Abuse of Authority – Entry of premises, § 87(2)(g)**). Once inside, Police Officer Cama searched through the dresser in § 87(2)(b)'s bedroom (**Allegation H: Abuse of Authority – Search of premises, § 87(2)(g)**). The officers then transported § 87(2)(b) to § 87(2)(b). § 87(2)(b) was not arrested or issued a summons during this incident.

Eleven clips of body-worn camera (BWC) footage was obtained for this incident. The footage was attached in IAs #118-128 (Board Review #01-11) and summarized in IA #129 (Board Review #12). Subclips from this footage have been attached in IAs #147-150 (Board Review #13-16).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Christopher D'Alto forcibly removed § 87(2)(b) to the hospital.

Allegation (B) Abuse of Authority: Police Officer Robert Connors forcibly removed § 87(2)(b) to the hospital.

Allegation (C) Force: Police Officer Christopher D'Alto used a Taser on § 87(2)(b)

§ 87(2)(b) provided a telephone statement on July 5, 2019 (Board Review #17). He was interviewed at the CCRB on July 9, 2019. § 87(2)(b) and § 87(2)(b) who witnessed the incident, provided telephone statements on July 19, 2019 (Board Review #18-19). § 87(2)(b) another witness, provided a telephone statement on September 25, 2019 (Board Review #20). The interview was unable to contact several other witnesses (Board Review #21). Police Officer Connors and Police Officer D'Alto were interviewed at the CCRB on September 27, 2019. Police Officer Cama and Police Officer Hartmann were interviewed at the CCRB on November 14, 2019.

It is undisputed that § 87(2)(b) resides at § 87(2)(b), § 87(2)(b). He has an § 87(2)(b)-year-old son, § 87(2)(b) who was with him at the time. In the early morning on July 9, 2019, at least one party called 911 regarding § 87(2)(b) who was standing in front of § 87(2)(b) at the time. Police Officer D'Alto and Police Officer Connors responded to the location. Police Officer D'Alto fired his Taser at § 87(2)(b). The Taser prongs struck § 87(2)(b) in the back. The shock caused § 87(2)(b) to fall face-down onto the ground. Police Officer D'Alto and Police Officer Connors then placed § 87(2)(b) in handcuffs. No other officers were present when Police Officer D'Alto discharged his Taser. § 87(2)(b) was subsequently removed to § 87(2)(b).

§ 87(2)(b) stated that the incident occurred at approximately 6:00 a.m. in the morning. He denied that he suffers from any ongoing medical issues. He also denied that he had consumed any illicit substances or that he was intoxicated or impaired at the time. He was dressed only in his underwear. § 87(2)(b) began to experience faintness and headaches. He called 911 to request that an ambulance be sent to his house. His upstairs neighbor, § 87(2)(b) also called 911 to report § 87(2)(b)'s condition. § 87(2)(b)'s boyfriend, identified by the investigation as § 87(2)(b) was also present at the time. § 87(2)(b) took § 87(2)(b) outside and waited there with him for the ambulance. A few minutes later, Police Officer D'Alto and Police Officer Connors arrived at the location. In his telephone statement, § 87(2)(b) stated that there was a third officer with them at the time. In his sworn statement, however, he stated that no other officers or EMTs were with them. § 87(2)(b) was carrying § 87(2)(b) and holding his cell phone at the time. The officers shouted at § 87(2)(b) telling him to put his son down. § 87(2)(b) speaking in an "assertive" tone, told the police that he had not done anything wrong and was not going to put down his son. The officers told him several more times to put down his son. § 87(2)(b) complied and put § 87(2)(b) down. § 87(2)(b) escorted § 87(2)(b) into § 87(2)(b). § 87(2)(b) then started walking towards his car, which was parked in front of the building. In his telephone statement, he stated that the officers told him to get down on the ground, but he ignored this command. He did not mention this command in his sworn statement. Before § 87(2)(b) reached his vehicle, he felt a stabbing pain in his lower-right back. He then lost consciousness. When he woke up, he was lying face-down on the ground and in handcuffs. Several officers were holding him down on the ground. He did not know how he came to be in this position. The officers then lifted him to his feet and moved him into a waiting ambulance. § 87(2)(b) was transported to § 87(2)(b). There, a nurse told § 87(2)(b) that the police had accused him of going "crazy" and removing his clothes. They also claimed that he was high on PCP. § 87(2)(b) denied that this was true. A doctor then informed § 87(2)(b) that he had been Tased by the police. The doctor extracted two Taser prongs from his lower back.

§ 87(2)(b), § 87(2)(b) and § 87(2)(b) resided at § 87(2)(b), § 87(2)(b), at the time of the incident. All three stated that they were awoken at approximately 3:00 a.m. when they heard § 87(2)(b) shouting outside the building. He made numerous irrational statements, including claiming that he was the president. § 87(2)(b) kept a car parked in front of the building. She alleged that § 87(2)(b) shouted that he was going to "fuck up" her car. § 87(2)(b) and § 87(2)(b) went downstairs to see what was happening. They found that § 87(2)(b) was completely naked. § 87(2)(b) did not go downstairs and did not see § 87(2)(b) herself, but stated that § 87(2)(b) told her that § 87(2)(b) was naked. § 87(2)(b) saw § 87(2)(b) outside as well. She became concerned for the child's safety due to § 87(2)(b)'s irrational state, so she brought him upstairs to wait with her and § 87(2)(b). § 87(2)(b) called 911 to report § 87(2)(b)'s behavior. § 87(2)(b) remained outside. Of the three witnesses, he was the only one who was still outside when Police Officer D'Alto and Police Officer Connors arrived. The two officers told § 87(2)(b) to get down on the ground. § 87(2)(b) refused. He continued making irrational remarks while speaking to the officers. Police Officer D'Alto then circled behind § 87(2)(b). He fired his Taser, striking § 87(2)(b) in the back. § 87(2)(b) fell to the ground, where the officers handcuffed him. No other force was used against § 87(2)(b). § 87(2)(b) felt that the officers acted improperly while using the Taser because § 87(2)(b) was not threatening anybody. Neither § 87(2)(b) nor § 87(2)(b) witnessed Police Officer D'Alto use his Taser.

Police Officer D'Alto and Police Officer Connors stated that at approximately 3:40 a.m., they received a report over the radio of an EDP at § 87(2)(b). As they drove to the location, the

police dispatcher further stated that the EDP was a naked individual harassing people and threatening to break into vehicles. Police Officer Connors further stated that the dispatcher told them that the EDP was holding an unknown item in his hand that could have been a weapon. When the officers arrived, they encountered § 87(2)(b) standing near a parked car. § 87(2)(b) was naked and covered in sweat. He was holding a walkie-talkie radio. He was not holding any weapons. Neither officer observed § 87(2)(b) or any other children in the vicinity. Several civilian bystanders were watching § 87(2)(b). When the officers exited their vehicle and approached § 87(2)(b) he shouted several irrational remarks at them, such as claiming that he was the president. Based on the information received over the radio as well as § 87(2)(b)'s nudity and irrational statements, the officers believed that he was emotionally disturbed. Both officers told § 87(2)(b) several times to get down on the ground so that they could restrain him and transport him to a hospital. § 87(2)(b) ignored their commands and continued making irrational statements. The two officers positioned themselves around § 87(2)(b) to contain him. When § 87(2)(b) refused to comply with their orders, Police Officer D'Alto drew his Taser and pointed it at § 87(2)(b)'s torso. He shined the Taser's red targeting laser on § 87(2)(b)'s torso to communicate that he might be Tased if he did not cooperate. Police Officer D'Alto stated that he was positioned approximately five to seven feet away from § 87(2)(b). Police Officer Connors estimated the distance to be about twenty feet. § 87(2)(b) still refused to get on the ground. § 87(2)(b) then turned towards one of the bystanders, who was standing near Police Officer Connors at the time. § 87(2)(b) pointed at this individual and stated, "That's the motherfucker." He then started walking towards the other individual. The officers did not observe any other interactions § 87(2)(b) had with the bystanders. Police Officer D'Alto responded to § 87(2)(b)'s movement by firing his Taser once. The Taser's darts lodged in § 87(2)(b)'s back. Police Officer D'Alto pulled the Taser's trigger only one time, causing it to cycle for five seconds. He explained that he fired his Taser in order to bring § 87(2)(b) into custody and to keep him away from the unidentified bystander. § 87(2)(b) fell face-down to the ground as soon as he was Tased. Once he was down, the two officers leaned down over § 87(2)(b) and placed him in handcuffs. § 87(2)(b) remained conscious and continued shouting irrational remarks at the officers while in custody.

This incident was documented in ICAD event § 87(2)(b) (Board Review #22). There were three 911 calls associated with the event (Board Review #23-25). Two of the callers declined to identify themselves, while the third identified herself as § 87(2)(b). The three callers stated complained about a naked male who was acting erratically. One of the unidentified callers stated that the male was holding an object in his hand that might have been a weapon and was threatening people. The second unidentified caller and § 87(2)(b) made no mention of a weapon but stated that the male threatened to damage a car. In the associated police radio recording, the dispatcher states that there is a naked male at the location who was striking a vehicle with a rock and was threatening people (Board Review #26-27).

Police Officer D'Alto prepared a Threat, Resistance and Injury Report to document the incident (Board Review #28). It states that he used his Taser against § 87(2)(b) to defend himself, to defend a member of the public, to defend another officer, to prevent a suspect from fleeing and to overcome resistance. No other force was noted. Police Officer D'Alto fired the Taser from approximately seven feet away. Both darts attached to § 87(2)(b)'s body. After being Tased, § 87(2)(b) was incapacitated and fell to the ground. He did not offer further resistance.

The Taser Data Sheet for Police Officer D'Alto's Taser states that it was armed at 3:55:17 a.m. on June 26, 2019. It was triggered once at 3:55:55 a.m. and cycled for five seconds. It was not

triggered again that day (Board Review #29).

§ 87(2)(b) was transported to § 87(2)(b) by EMS at § 87(2)(b) on § 87(2)(b) (Privileged Documents). He had been taken into custody by the NYPD after experiencing a psychotic episode. § 87(2)(b) was Tased while being taken into custody. § 87(2)(b) was delusional during his initial examination, calling himself a “king” and shouting at a wall. He threatened the hospital staff with violence. He later alleged that the police “beat” him. § 87(2)(b) had no apparent physical injuries beyond the Taser wounds. His blood test returned negative results for any drugs. He was diagnosed with rhabdomyolysis, a kidney condition, as well as bipolar disorder with psychotic features. He was discharged on § 87(2)(b).

Subclips from Police Officer D’Alto’s and Police Officer Connors’ BWC footage has been attached in IAs #147-148 (Board Review #13-14). Both clips show the officers exiting their vehicles and approaching § 87(2)(b) is naked. He is not holding § 87(2)(b). He tells the officers both that he is the president and that he is a police officer. Police Officer D’Alto and Police Officer Connors both tells § 87(2)(b) several times to lay down on the ground. § 87(2)(b) starts pacing on the sidewalk. At 0:05 into Police Officer D’Alto’s recording, he points his Taser at § 87(2)(b)’s chest and tells him to lay down. A red targeting dot is visible on § 87(2)(b)’s chest. § 87(2)(b) then holds up his handheld radio and asks Police Officer D’Alto if he wants him to turn it on. At 0:15 into Police Officer Connors’ recording, § 87(2)(b) tells him, “You’re going to have to shoot me.” Police Officer Connors replies, “I’m not shooting you.” At 0:30 into Police Officer D’Alto’s recording, § 87(2)(b) states, “Let’s wait for the mailman to come.” An unidentified civilian is then seen standing in the road. § 87(2)(b) points at the civilian and shouts, “That’s the mailman! That’s...” § 87(2)(b) turns away from Police Officer D’Alto and takes a step in the civilian’s direction. Police Officer D’Alto then fires the Taser. Both darts strike § 87(2)(b) in the back. § 87(2)(b) falls face-down to the ground. Both officers lean down over § 87(2)(b) and place him in handcuffs.

§ 87(2)(b), § 87(2)(g)
§ 87(2)(b)
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§ 87(2)(b)
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§ 87(2)(b)

NYPD Patrol Guide procedure 221-03 defines an emotionally disturbed person (EDP) as somebody who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. If the EDP’s actions constitute an immediate threat of injury to himself or others, officers should take reasonable measures to terminate or prevent such behavior. If the EDP’s actions do not constitute such a threat but the EDP agrees to leave the location voluntarily, officers may take him into custody. Otherwise, officers must isolate and contain the EDP until a patrol supervisor responds (Board Review #31).

NYPD Patrol Guide procedure 221-08 states that conducted energy weapons such as Tasers may be used to overcome resistance when taking a mentally ill or emotionally disturbed person into custody. Tasers should only be used against individuals who are actively resisting, exhibiting active

aggression, or to prevent individuals from physically injuring themselves or other individuals present. It defines active resistance as physically evasive movements intended to defeat an officer's attempt at controlling them or verbally signaling an intention to prevent officers from taking him into custody. It defines active aggression as any threat or overt act of assault, coupled with the ability to carry out that threat, which reasonably indicates that an assault or injury to any person is imminent. Officers are encouraged to warn individuals before using a Taser as a means of de-escalating potentially violent situations (Board Review #32).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation (D) Abuse of Authority: Police Officer Christopher D'Alto searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b)'s car was parked in front of § 87(2)(b). § 87(2)(b) was standing near the vehicle when Police Officer D'Alto and Police Officer Connors confronted him. It is also undisputed that Police Officer D'Alto entered the vehicle's interior and trunk after § 87(2)(b) was handcuffed. He did not remove anything from the vehicle.

§ 87(2)(b) denied witnessing any officers enter his vehicle before he was removed to the hospital. After the incident, an unidentified friend who had witnessed the incident told § 87(2)(b) that the police had obtained the car's keys from his person while he was handcuffed. His friend also stated that an unspecified officer searched the interior cabin and trunk of the vehicle. After the incident, § 87(2)(b) found that his car keys and cell phone were in the trunk of his

vehicle. Since he had not placed those items there, he assumed that the officer who searched the vehicle did so.

Neither § 87(2)(b), § 87(2)(b) nor § 87(2)(b) was aware of Police Officer D’Alto entering § 87(2)(b)’s vehicle.

Police Officer D’Alto stated that the doors of § 87(2)(b)’s vehicle were open when he and Police Officer Connors confronted him. After § 87(2)(b) was taken into custody, he continued shouting irrational remarks. He also said something about his car. Police Officer D’Alto did not recall § 87(2)(b)’s exact remark. At the time, the vehicle’s driver’s door was still open. Police Officer D’Alto noticed the vehicle’s keys sitting on the driver’s seat. Police Officer D’Alto told § 87(2)(b) that he was going to secure the vehicle. § 87(2)(b) started shouting a series of numbers. Police Officer D’Alto assumed that these numbers were a security code that could unlock the vehicle. Police Officer D’Alto also decided that he would search the vehicle to find clothing for § 87(2)(b). He leaned into the vehicle’s back seat, where he found a sweater. He did not take it, as the sweater did not appear large enough to fully cover § 87(2)(b)’s body. Police Officer D’Alto then took the keys from the driver’s seat and opened the trunk. He did not see any clothing inside. Police Officer D’Alto took the radio that § 87(2)(b) had been holding earlier and placed it in the trunk for safekeeping. He then closed the trunk. Police Officer D’Alto later handed the vehicle’s keys to § 87(2)(b) the mother of § 87(2)(b). He denied conducting any other search of the vehicle. He denied removing anything from the vehicle.

The other officers were not aware of Police Officer D’Alto entering § 87(2)(b)’s vehicle.

A subclip from Police Officer D’Alto’s BWC footage is attached in IA #149 (Board Review #15). It shows the vehicle search. At the start of the recording, § 87(2)(b) is lying on the ground in handcuffs. He states, “If you open the car, you’ll see. That’s his mother right there.” At 0:29 into the recording, § 87(2)(b) states, “Call me son. He knows the code. He knows the code to open the door. Call my son.” At 1:20 into the recording, Police Officer D’Alto asks if anybody knows where to get clothes for § 87(2)(b). At 1:40 into the recording, Police Officer D’Alto walks up to § 87(2)(b)’s vehicle. The driver’s door is open. He shines his flashlight into the interior. There is a baby seat in the backseat with an unidentified piece of fabric on top of it. Police Officer leans into the back seat through the driver’s door. The camera does not show where he reaches in the back seat. He takes out the fabric and holds it up. The camera does not show it clearly. He then tosses it into the driver’s seat. At 2:10 into the recording, Police Officer D’Alto takes a set of keys from the driver’s seat and walks to the trunk. He opens the trunk and looks inside with a flashlight. He states, “No pants, no pants.” He then closes the trunk about a second later. At 2:30 into the recording, Police Officer D’Alto throws a piece of fabric into the front seat and closes the door. He walks back to § 87(2)(b). He remarks that he saw a sweatshirt in the vehicle. At 3:48 into the recording, § 87(2)(b) states, “Tell my son to open the trunk without the key.” Police Officer D’Alto tells § 87(2)(b) that he already looked in the trunk.

Generally, an officer requires probable cause to believe that there is contraband inside a vehicle to search it. Voluntary consent from the vehicle’s owner is a valid substitute for probable cause. People v. Barclay, 201 A.D.2d 952 (App. Term, 4th Dept., 1994) (Board Review #33).

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) The BWC footage shows that § 87(2)(b) told the officers to open his car, including his trunk. He also advised the officers to get his son to open the vehicle for them.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(g)

Allegation (E) Abuse of Authority: Police Officer Robert Connors entered § 87(2)(b) , in Brooklyn.

Allegation (F) Abuse of Authority: Police Officer Danny Cama entered § 87(2)(b) , in Brooklyn.

Allegation (G) Abuse of Authority: Police Officer Andrew Hartmann entered § 87(2)(b) , in Brooklyn.

It is undisputed that Police Officer Connors, Police Officer Cama and Police Officer Hartmann entered § 87(2)(b)'s apartment at § 87(2)(b), § 87(2)(b) after he was handcuffed. § 87(2)(b) had left both the building's and the apartment's front doors open. § 87(2)(b), § 87(2)(b)'s mother, was present when the officers were inside the apartment. She had not been present earlier, when § 87(2)(b) was Tased.

§ 87(2)(b) denied witnessing any officers enter his apartment during the incident. After the incident, § 87(2)(b) and § 87(2)(b) told him that the police had entered his apartment. They did not explain how the police accessed the apartment.

§ 87(2)(b), § 87(2)(b) and § 87(2)(b) saw officers enter § 87(2)(b) after § 87(2)(b) was restrained. They did not see what the officers did once inside.

§ 87(2)(g)

Both officers stated that they asked several unidentified bystanders if they knew about § 87(2)(b)'s condition. The bystanders did not know why § 87(2)(b) was emotionally disturbed, but directed the officers to § 87(2)(b)'s apartment building. The officers found that the building's front door and the door to the first-floor apartment were open. Both officers stated that they decided to enter the house to look for § 87(2)(b)'s identification and to obtain clothing for § 87(2)(b). Police Officer Connors also stated that he wanted to see if anybody was inside the apartment. Police Officer Cama stated that they were looking for § 87(2)(b). They denied entering the location to search for contraband. Police Officer Connors stated that § 87(2)(b) and § 87(2)(b) were standing inside the apartment. He spoke to both of them to find out what had happened to § 87(2)(b) prior to the incident. Police Officer Cama initially stated that he saw § 87(2)(b) and § 87(2)(b) at some point during the incident, but did not recall if they were inside the apartment. He later stated that § 87(2)(b) and § 87(2)(b) entered the apartment after the officers did.

Police Officer Hartmann also stated that he went to § 87(2)(b)'s apartment. He did not recall how he learned its location. He did not recall how he gained access to the premises. He initially stated that he was admitted to the apartment by § 87(2)(b). Later, though, he stated that other officers were already inside the apartment when he arrived and that he followed them in. Police Officer Hartmann stated that he went into the apartment to find clothing for § 87(2)(b).

A subclip taken from Police Officer Cama's BWC footage is attached in IA #150 (Board Review #16). The video takes place after § 87(2)(b) was subdued and handcuffed. It shows Police

Officer Cama speaking to several unidentified bystanders outside § 87(2)(b). The bystanders point to § 87(2)(b)'s building and state that § 87(2)(b) lives on the § 87(2)(b) with his son. At 0:48 into the recording, a bystander tells Police Officer Cama, "The mom just went in with the baby." Police Officer Cama walks into the building and approaches the front door to the apartment located on the § 87(2)(b). The door is open a few inches. At 0:55 into the recording, Police Officer Cama knocks on the door. A female voice is heard in the distance, stating, "Yes?" Police Officer Cama pushes the door open and states, "Ma'am, it's the police." The door opens into a kitchen. § 87(2)(b) and § 87(2)(b) are standing inside. § 87(2)(b) replies, "Hi." Police Officer Cama then walks into the apartment and speaks to § 87(2)(b) about § 87(2)(b)'s condition. At 1:40 into the recording, Police Officer Cama asks § 87(2)(b) if she lives in the apartment. She replies that she does not.

An individual who shares common authority of access and control to a residence, such as a family member or fiancée, can provide consent for an officer to search the residence when their co-occupants are not present. This consent must be given voluntarily. People v. Monclova, 89 A.D.3d 424 (App. Term, 1st Dept., 2011) (Board Review #34).

A civilian may provide officers with consent to enter their residence through non-verbal means, such as leading officers inside. People v. Moran, 68 A.D.3d 786 (App. Term, 2nd Dept., 2009) (Board Review #35).

§ 87(2)(b), § 87(2)(g)
The BWC footage shows that the civilian bystanders identified § 87(2)(b)'s apartment to Police Officer Cama and the other officers, and that they told them that the mother of § 87(2)(b)'s child was inside. When the officers arrived at the apartment, they found that the door was open. § 87(2)(b), § 87(2)(g)

While § 87(2)(b) did eventually inform the officers that she did not live in the apartment, she did not disclose this until after the officers were already inside.

When the officers announced themselves at the door, § 87(2)(b) called out to the officers from farther inside the apartment. § 87(2)(b) did not object to the officers' presence once they followed her voice inside. § 87(2)(b), § 87(2)(g)

Allegation (H) Abuse of Authority: Police Officer Danny Cama searched § 87(2)(b), in Brooklyn.

It is undisputed that Police Officer Cama, Police Officer Connors and Police Officer Hartmann entered § 87(2)(b)'s apartment to look for clothing and his identification. They met with § 87(2)(b) inside the apartment. § 87(2)(b) told the officers that she did not live in the apartment. The officers then looked around the interior of the apartment's bedroom.

§ 87(2)(b) stated that when § 87(2)(b) and § 87(2)(b) informed him of the officers entering his apartment after he was Tased, they also told him that officers searched through a dresser that he kept somewhere in the apartment. § 87(2)(b) was not aware of the police removing any items from his apartment.

Police Officer Cama stated that he stood at the apartment's front door and did not go into any other areas, such as the bedroom. He denied searching the apartment's interior. He denied opening any drawers or containers. He denied examining any prescription bottles in the apartment. At some point during the entry, another officer found § 87(2)(b)'s clothing. Police Officer Cama did not recall which officer found the clothes, where the clothes were found or how they were recovered. The officers eventually identified § 87(2)(b) but Police Officer Cama did not recall how they did so.

Police Officer Connors stated that once he entered the apartment, § 87(2)(b) took him and the other officers to § 87(2)(b)'s bedroom. Police Officer Hartmann stated that officers were already inside the bedroom when he entered the apartment. The bedroom was dark, so they used their flashlights to look around the bedroom. Neither Police Officer Connors nor Police Officer Hartmann recalled officers opening any drawers or containers inside the apartment. Police Officer Connors stated that he eventually found a pair of pants for § 87(2)(b) but did not recall where he found them inside the apartment or how they came into his possession. Police Officer Hartmann did not recall any items being found.

A subclip taken from Police Officer Cama's BWC footage is attached in IA #150 (Board Review #16). At 1:40 into the recording, Police Officer Cama asks § 87(2)(b) if she lives in the apartment. She replies that she does not. Police Officer Cama steps into the apartment's bedroom. The room is dark, and the light switch does not function. Police Officer Cama shines a flashlight around the interior of the room. At 3:15 into the recording, Police Officer Cama shines his flashlight onto a dresser. The dresser's top drawer is open. He reaches into the open drawer and pulls out a prescription bottle. He reads § 87(2)(b)'s name on the bottle. He places the bottle back into the drawer and starts shuffling around inside the drawer. At 4:05 into the recording, Police Officer Cama pulls open one of the dresser's lower drawers and looks inside. The drawer is empty. He then holds up a pair of pants. It is unclear where they came from. Police Officer Cama then leaves the bedroom.

None of the other BWC clips show officers opening any compartments or containers within the apartment (Board Review #01-11).

Police Officer Cama was shown the portion of his BWC footage showing him searching the dresser during his CCRB interview. Police Officer Cama stated that he looked through the dresser, examined the prescription bottle, and opened the lower dresser drawer to find a means to identify § 87(2)(b). He did not do so for any other reason.

§ 87(2)(b), § 87(2)(g)

An individual who shares common authority of access and control to a residence, such as a family member or fiancée, can provide consent for an officer to search the residence when their co-occupants are not present. People v. Monclova, 89 A.D.3d 424 (App. Term, 1st Dept., 2011) (Board Review #34).

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g) Shortly after the entry, however, § 87(2)(b) disclosed that she did not live there. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

The officers stated that they were looking for § 87(2)(b)'s identification. § 87(2)(b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to two previous CCRB complaints and has been named as a victim in four allegations (Board Review #38):
 - § 87(2)(b)
- Police Officer D'Alto has been a member of the service for eleven years and has been a subject in eight previous complaints and fourteen allegations, none of which have been substantiated. § 87(2)(g)
- Police Officer Connors has been a member of the service for eleven years and this is the first CCRB complaint to which he has been a subject.
- Police Officer Cama has been a member of the service for thirteen years and has been a subject in seven previous complaints and eight allegations, none of which have been substantiated. § 87(2)(g)
- Police Officer Hartmann has been a member of the service for thirteen years and has been a subject in eight previous cases and seventeen allegations, none of which have been substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming personal injury, emotional distress, assault, battery, excessive force, police brutality, menacing, harassment and negligence, and is seeking \$8,000,000 as regress (Board Review #36). A 50H hearing is scheduled for § 87(2)(b).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date